



POLICE DEPARTMENT

June 4, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202311490 (Incident Date: December 6, 2023) regarding Police Officer Michele Carrieri, Tax No. 944098 (PODS Case No. C-033995)

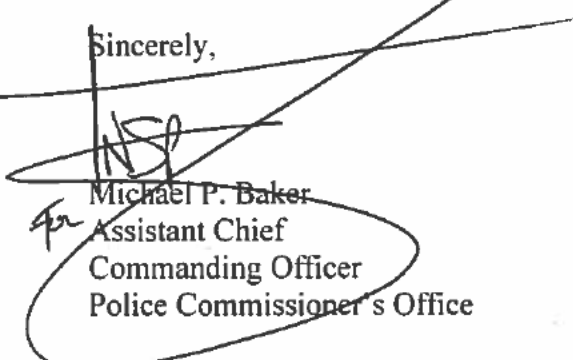
Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in connection with CCRB Case No. 202311490, pertaining to Police Officer Michele Carrieri, and determined that no disciplinary action is warranted.

In this matter, Police Officer Carrieri utilized her personal cell phone to record an individual who approached her and other officers in an irate and agitated manner. The individual was attempting to address the officers regarding a dispute he had earlier with another train passenger who was no longer on scene. After informing the individual of their names and shield numbers, the individual continued to follow Police Officer Carrieri as she attempted to walk away. Due to not being assigned a body worn camera at the time of the above incident, Police Officer Carrieri recorded the individual with her cell phone. Unbeknownst to her at the time, she utilized her personal phone rather than her Department phone. Both phones were iPhones housed in similar protective cases. Once Police Officer Carrieri realized her error, she brought it to the attention of her Integrity Control Officer.

The Police Commissioner has determined that discipline for taking a recording of a member of the public during an encounter using a personal digital device, is an internal police matter and falls outside the purview of the CCRB. The Police Commissioner, after having independently considered the matter, intends to impose no disciplinary action for the alleged misconduct.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

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MOHAMMAD KHALID
INTERIM CHAIR

June 5, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. Police Officer Michele Carrieri, Tax No. 944098
CCRB Disciplinary Case No.: 202311490 (PODS No. C-033995)

Dear Commissioner Tisch:

I am writing in response to the letter from Assistant Chief Commanding Officer Michael P. Baker, dated June 4, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against Police Officer Michele Carrieri. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department, I am responding to Assistant Chief Baker’s notification.

The Statute of Limitation for this case expires on June 6, 2025. The CCRB filed charges on this case on May 1, 2025. Chief Baker’s notification was received by the CCRB on June 4, 2025, only two days prior to the expiration of the Statute of Limitations. Under the MOU, the CCRB is allowed five business days to respond to Chief Baker’s notification. Such late notice hinders the opportunity of the CCRB to adequately review and respond appropriately to the notification.

Assistant Chief Baker stated that discipline for taking a recording of a member of the public during an encounter using a personal digital device is an internal police matter and falls outside the purview of the CCRB.

NYPD Administrative Guide 304-06 states that “engaging in conduct prejudicial to good order, efficiency, or discipline of the Department” is prohibited conduct for a member of service. The Mission and Values of the New York City Police Department, found in NYPD Patrol Guide Procedure 200-02, states that “The Department is committed to accomplishing its mission of protecting the lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect...” When PO Carrieri used her personal cell phone to take photos of a civilian, PO Carrieri committed an abuse of authority and discourtesy against the civilian in that she did not follow the mission, vision, or values of the Department and

her conduct was prejudicial to the good order, efficiency, and discipline of the Department. These violations of departmental policy fall under the Force, Abuse of Authority, Discourtesy, and Offense Language umbrella, and as such, are within the CCRB's jurisdiction to pursue charges.

Based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against PO Carrieri in this matter.

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
NYC Civilian Complaint Review Board



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June 6, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

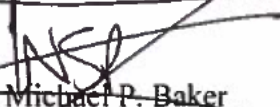
Re: CCRB Case No. 202311490 (Incident Date: December 6, 2023) regarding Police Officer Michele Carrieri, Tax No. 944098 (PODS Case No. C-033995)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated June 5, 2025, regarding the CCRB case involving Police Officer Michele Carrieri. Notwithstanding the arguments presented in your letter, the Police Commissioner affirms her decision that the alleged misconduct, the utilization of her personal cell phone to record an individual, falls outside the purview of CCRB's jurisdiction to investigate and prosecute. Furthermore, the Police Commissioner has determined that the actions taken by Police Officer Carrieri did not constitute misconduct.

Therefore, the Police Commissioner has directed that Police Officer Carrieri receive no disciplinary action in connection with this matter.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office